



**Order under Section 69
Residential Tenancies Act, 2006**

Citation: Vacca v Van Ham, 2025 ONLTB 96481

Date: 2025-12-18

File Number: LTB-L-069078-25

In the matter of: 4016 KALAR RD
NIAGARA FALLS ON L2H1S6

Between: Anthony Vacca Landlord

And

Joshua Nathaniel Van Ham Tenant

Anthony Vacca (the 'Landlord') applied for an order to terminate the tenancy and evict Joshua Nathaniel Van Ham (the 'Tenant') because the Tenant did not pay the rent that the Tenant owes.

This application was heard by videoconference on December 12, 2025.

The Landlord, their representative Sidney Sheridan, and the Tenant attended the hearing.

Determinations:

Preliminary Issue – Non-Compliance with Interim Order and Tenant's Section 82 Issues

1. On October 30, 2025 an interim order was issued by the Board LTB-L-069078-25-IN (the "Interim Order"). Paragraph 9 of the Interim Order states: "the Tenant is required to pay the ongoing rent to the Landlord by the day it is due until the matter is resolved or the LTB order otherwise."
2. Paragraph 10 of the Interim Order states: "If the Tenant does not comply with the requirement to pay the ongoing rent, the Member may refuse to accept or consider the Tenant's evidence and submissions."

3. I am satisfied the Interim Order clearly outlines the requirement of the Tenant to pay ongoing rent and clearly outlines the consequences should the Tenant not comply.
4. It is undisputed the Tenant did not pay the ongoing rent in full on the date it was due.
5. Therefore, I declined to hear any issues the Tenant intended to raise under section 82 of the *Residential Tenancies Act, 2006* (the "Act"). Nothing in this order precludes the Tenant from filing their own applications if they wish to have their issues by the Board.

L1 Application

1. The Landlord served the Tenant with a valid Notice to End Tenancy Early for Non-payment of Rent (N4 Notice). The Tenant did not void the notice by paying the amount of rent arrears owing by the termination date in the N4 Notice or before the date the application was filed.
2. As of the hearing date, the Tenant was still in possession of the rental unit.
3. The lawful rent is \$2,400.00. It is due on the 1st day of each month.
4. Based on the Monthly rent, the daily rent/compensation is \$78.90. This amount is calculated as follows: \$2,400.00 x 12, divided by 365 days.
5. The Tenant has not made any payments since the application was filed.
6. The rent arrears owing to December 31, 2025 are \$11,500.00.
7. The Landlord collected a rent deposit of \$2,400.00 from the Tenant and this deposit is still being held by the Landlord. The rent deposit can only be applied to the last rental period of the tenancy if the tenancy is terminated.
8. Interest on the rent deposit, in the amount of \$18.08 is owing to the Tenant for the period from August 25, 2025 to December 12, 2025.

Relief from Eviction

9. The Landlord sought a voidable termination order since the Tenant failed to pay all arrears plus any new rent owing as of the hearing date.
10. The Tenant requested an extended termination date to March 1, 2026. Based on the financial disclosure provided by the Tenant I am not satisfied the tenancy is viable. The Tenant's projected income is an insufficient amount to pay the ongoing rent. Considering the Tenant did not comply with the Interim Order to pay the ongoing rent, I am not satisfied the Tenant would pay the ongoing rent until March 1, 2026.

11. However, since the Landlord is holding a last month's rent deposit that can be applied to January, this will reduce the prejudice to the Landlord; therefore, the voidable termination date is extended to January 31, 2026.
12. I have considered all of the disclosed circumstances in accordance with subsection 83(2) of the *Residential Tenancies Act, 2006* (the 'Act'), and find that it would not be unfair to postpone the eviction until January 31, 2026 pursuant to subsection 83(1)(b) of the Act.

It is ordered that:

1. The tenancy between the Landlord and the Tenant is terminated unless the Tenant voids this order.
2. **The Tenant may void this order and continue the tenancy by paying to the Landlord or to the LTB in trust:**
 - \$11,500.00 if the payment is made on or before December 31, 2025. See Schedule 1 for the calculation of the amount owing.
- OR**
- \$13,900.00 if the payment is made on or before January 31, 2026. See Schedule 1 for the calculation of the amount owing.
3. The Tenant may also make a motion at the LTB to void this order under section 74(11) of the Act, if the Tenant has paid the full amount owing as ordered plus any additional rent that became due after January 31, 2026 but before the Court Enforcement Office (Sheriff) enforces the eviction. The Tenant may only make this motion once during the tenancy.
4. **If the Tenant does not pay the amount required to void this order the Tenant must move out of the rental unit on or before January 31, 2026.**
5. If the Tenant does not void the order, the Tenant shall pay to the Landlord \$7,628.72. This amount includes rent arrears owing up to the date of the hearing. The rent deposit and interest the Landlord owes on the rent deposit are deducted from the amount owing by the Tenant. See Schedule 1 for the calculation of the amount owing.
6. The Tenant shall also pay the Landlord compensation of \$78.90 per day for the use of the unit starting December 13, 2025 until the date the Tenant moves out of the unit.
7. If the Tenant does not pay the Landlord the full amount owing on or before January 31, 2026, the Tenant will start to owe interest. This will be simple interest calculated from February 1, 2026 at 4.00% annually on the balance outstanding.
8. If the unit is not vacated on or before January 31, 2026, then starting February 1, 2026, the Landlord may file this order with the Court Enforcement Office (Sheriff) so that the eviction may be enforced.

9. Upon receipt of this order, the Court Enforcement Office (Sheriff) is directed to give vacant possession of the unit to the Landlord on or after February 1, 2026.

December 18, 2025

Date Issued

Elena Jacob

Member, Landlord and Tenant Board

15 Grosvenor Street, Ground Floor Toronto
ON M7A 2G6

If you have any questions about this order, call 416-645-8080 or toll free at 1-888-332-3234.

In accordance with section 81 of the Act, the part of this order relating to the eviction expires on August 1, 2026 if the order has not been filed on or before this date with the Court Enforcement Office (Sheriff) that has territorial jurisdiction where the rental unit is located.

**Schedule 1
SUMMARY OF CALCULATIONS**

A. Amount the Tenant must pay to void the eviction order and continue the tenancy if the payment is made on or before December 31, 2025

Rent Owing To December 31, 2025	\$11,500.00
Total the Tenant must pay to continue the tenancy	\$11,500.00

B. Amount the Tenant must pay to void the eviction order and continue the tenancy if the payment is made on or before January 31, 2026

Rent Owing To January 31, 2026	\$13,900.00
Total the Tenant must pay to continue the tenancy	\$13,900.00

C. Amount the Tenant must pay if the tenancy is terminated

Rent Owing To Hearing Date	\$10,046.80
Less the amount of the last month's rent deposit	- \$2,400.00
Less the amount of the interest on the last month's rent deposit	- \$18.08
Total amount owing to the Landlord	\$7,628.72
Plus daily compensation owing for each day of occupation starting December 13, 2025	\$78.90 (per day)
**Ongoing daily compensation continues to accumulate until the total amount owing (excluding costs) is \$50,000.00.	